

How The Amerindians of Arima Lost Their Lands

Notes from Primary and Other Historical Sources, 1802-1880.

A Report prepared at the request of the Santa Rosa Carib Community of Arima, Trinidad

By

Maximilian C. Forte

PhD in Anthropology, University of Adelaide, Australia (2002); Editor, Caribbean Amerindian Centrelink (www.centrelink.org); Editor, KACIKE: The Journal of Caribbean Amerindian History and Anthropology (www.kacike.org); Assistant Professor in the Department of Sociology & Anthropology, Concordia University, Montreal, Canada (at the time of writing, he was an Assistant Professor in the Department of Anthropology & Sociology, Cape Breton University, Sydney, Nova Scotia, Canada). E-mail: mcforte@kacike.org

Written by, and extracted from the research of Maximilian C. Forte, PhD.

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Questions:

- **Why did the Amerindians have land?**
- **How much land did they have and where?**
- **Under what conditions was the land held?**
- **How did they lose the land?**
- **Where did they end up after losing the land?**
- **Why should they receive compensation?**

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INTRODUCTION [\[return to top\]](#)

At the request of Ricardo Bharath Hernandez, President of the Santa Rosa Carib Community of Arima, Trinidad, I am furnishing this report based on my own historical research into the background of the Mission of Arima. Much of this information surprised me as I began to encounter it during my work. Apparently, at no time, and not under the law, was the actual Mission of Arima ever formally dissolved by the Roman Catholic Church, nor were the lands of the Mission ever formally or legally yielded to other proprietors. The dissolution of the “Indian Mission of Santa Rosa de Arima” was a de facto occurrence, and not one that was de jure. For the members of today’s Carib Community, I imagine that it was thus very encouraging to hear Joanne Yuille Williams, Minister for Community Development, express the desire to “make reparations for all that this [Carib] Community has lost”, in a speech at the Santa Rosa Carib Centre on Wednesday, 28 August 2002, for the launch of the new First Nations Resource Centre.

The loss of the Mission lands is not simply a local affair either, in the privately contested domain of unknown individuals: it is also a question of International Law. Great Britain signed a formal treaty for Spain in 1802 where the latter ceded its colony to Britain on the condition that certain provisions were met—and one of these was that the Catholic Missions for the Amerindians would be safeguarded. The fact that we know this to be true is attested to by the actions, decrees and letters of Governor Sir Ralph Woodford in his actions to protect and consolidate the Mission of Arima, according to the laws then in force.

The treaty by which Spain ceded Trinidad to Great Britain was known as the Treaty of Amiens, signed on 25 March 1802, and ratified on 18 April of that year.^[1] Several states were signatories to that Treaty, itself one of the landmark treaties in the development of the corpus of what we know today as International Law. Spain had itself come under the domination of France and Napoleon Bonaparte, as a result of a succession of wars, known as the Napoleonic Wars, fought between several European nations from 1799 to 1815. Britain conquered Trinidad in 1797 whereby Sir Ralph Abercrombie governed, in part as an action against its French adversary whose Spanish proxy ruled Trinidad. These details are mentioned because they form the wider framework for the legal context ultimately governing the Amerindian Mission of Arima, as a Spanish-created institution.

The Treaty, was headed by the following notation: “Definitive Treaty of Peace between the French Republic, his Majesty the King of Spain and the Indies, and the Batavian Republic (on the one Part); and his Majesty, the King of the United Kingdom of Great Britain and Ireland (on the other Part)”. The participants in the negotiations were the Marquis Cornwallis for Great Britain, Joseph Bonaparte for France, Don Josef Nicolas d’Azara for Spain, and Jean Schimmelpennick for the Batavian Republic. Generally, the Treaty sought to make amends and pay compensation for the consequences of past hostilities. Territories conquered during wars were to be returned—with the exceptions of Trinidad and Ceylon, as stated under Article 3:

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His Britannic majesty restores to the French republic and its allies, viz. his Catholic majesty and the Batavian republic, all the possessions and colonies which respectively belonged to them, and which have been either occupied or conquered by the British forces, during the course of the present war, with the exception of the island of Trinidad, and of the Dutch possessions on the island of Ceylon.

Article 4 simply reaffirmed this fact: “His Catholic majesty cedes and guarantees, in full property and sovereignty, the island of Trinidad to his Britannic majesty”. These measures were to go into force three months after the April ratification of the Treaty, thus in July of 1802.

In the case of a ceded territory, such as Trinidad, the Treaty stipulated the following protections in Article 13:

As to the inhabitants of the countries restored or ceded, it is hereby agreed, that no person shall, under any pretence, be prosecuted, disturbed, or molested, either in person or property, on account of his political conduct or opinion, or for his attachment to any of the contracting parties, on any account whatever except for debts contracted with individuals, or for acts subsequent to the present treaty.

Under these provisions, properties held by the Catholic Church, and on behalf of its wards, the Amerindians, could not simply be expropriated.

What happened subsequent to 1802, and especially after the departure of Sir Ralph Woodford, as we shall see, manifests that the provisions of the Treaty were not honoured, and that in some cases British officials treated Trinidad as in a state of a virtual terra nullius prior to British conquest, that is, a land without people. The British treated Australia in similar terms, which was also a convenient way for despoiling Aborigines of their traditional lands. A land without people is a land free for the taking. Modern scholarship has often bought into this portrayal, depicting Trinidad as a wilderness pre-1802. Such notions are also ideologically convenient and reinforce the terra nullius notion: Trinidad did, and could only achieve “progress” under its new industrializing Protestant masters, the British. Amerindians who occupied what came to be valuable cocoa growing properties in and around Arima were said to have become extinct, or “nearly so”, which is another convenient means of expropriating lands safeguarded for them by the Catholic Church. As the Catholic Church tried to assert control over these lands, both local oligarchs and British Governors attempted to wrest control of lands used by the Church itself. By the late 1800s, Arima was a site of hostility between priests and the officers in charge of the Crown Colony.

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Throughout this paper, we will encounter certain “main players” with frequency. One of these is Father Louis Daudier, a Parisian, who was parish priest in Arima for over a decade, starting from 1869. Father Daudier was able to reconstruct oral

histories pointing to aboriginal occupation of lands in Arima, which the government and business interests had violated. Another main player, before Daudier, was Governor Sir Ralph Woodford, who governed Trinidad from 1813 until 1828, and safeguarded the Mission of Arima as a legal entity. By the end of his term in office, the Mission of Santa Rosa de Arima consisted of 1,320 acres of land, with 1,000 of those acres in the proximity of the Church of Santa Rosa, and an additional 320 acres on the southern slope of Calvary Hill, adjacent to what is now known as Lord Harris Square. The acts, decrees and letters of Governor Woodford attest to the laws in force to protect the Amerindians' lands in Arima, as recognised by Great Britain, and as ensured by the terms of the Treaty of Amiens discussed above. However, certain business interests would subsequently claim that the Mission of Arima had been “effectively” dissolved, and that no legal claims could be made on the lands of the Mission. Another key player in this regard was the Burnley Commission, a body appointed to investigate the state of lands and labour in the colony on the eve of the emancipation of African slaves. The Mission of Arima came in for special attention.

We shall also see that the lands of the Amerindians were illegally alienated. As Governor Woodford recognised, these lands were to be inalienable, that is, they could not be bought or sold by anyone, not even the Amerindians themselves. Where it is suggested that some Amerindians may have themselves sold their own lands, that fact does not make the action any more legal, and should have been prohibited by the relevant authorities. The failure to enforce the law is also not an act that legalises the alienation of these properties. In addition, we will see that British governors soon began to demand formal deeds and titles to lands held by old Spanish families and Amerindians, when in many cases there were none as these lands had been held since time immemorial. Amerindians who knew not how to read were largely unaware of the posted notices. Failing to provide title to one's land meant that it could be placed for sale on the open market. Taxes had to also be paid on these lands, and failure to pay these taxes would also mean they could be alienated, under these new and ostensibly illegal provisions given the terms of the Treaty of Amiens.

Amerindian families in the cocoa growing region of Arima, starved for cash during a time when Sugar was King and Cocoa was Pauper, sold alcohol by a store on the Mission itself, unable to read or write, unable to earn an income to pay taxes, and were thus severely constrained by these harsh realities. Inevitably many would have to leave their lands in Arima for surrounding areas. Some became squatters, others forced to work on estates consisting of lands they once possibly occupied. Whether by dubious laws, poverty, and illiteracy, the Amerindians of Arima became extinct only in the sense that they were forced from the town—extinct, but in a political and commercial sense only. Worse yet, in terms of having a claim to the lands of the Mission, were the mixed offspring between local Spanish settlers and Amerindians spouses: as mixed persons, they were thus free to leave the Mission, which many did, in the process losing hold on Mission lands.

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THE HISTORICAL BACKGROUND OF THE AMERINDIAN MISSION OF ARIMA [\[return to top\]](#)

By the 1780s momentous changes began to occur in Trinidad. After a succession of European peace treaties, Trinidad decided to open its doors to French Caribbean immigrants and their slaves in an effort to revitalise the Trinidad economy

by entering into lucrative sugar production and thereby also increasing the island's population. These French immigrants were also seeking to flee from wars and uprisings affecting various French territories in the Caribbean. Hence in 1783 the Cedula de población was promulgated, stipulating that the new arrivals should be members of the Roman Catholic faith and bring property or assets with them (namely slaves and capital). These transformations would have immediate impacts on Trinidad's Amerindians, as similar European treaties of 1783 would have on Caribs in the wider Caribbean and on Indians in the United States, which consisted primarily of schemes to place aboriginal groups on reservations and to institute Christianisation and assimilation campaigns (see Gregoire & Kanem 1989:52; Strong & Van Winkle 1993:12).

By 1785, the last Spanish governor of Trinidad, José María Chacón, consolidated the northern villages of Tacarigua, Arauca and Cuara, at Arima (Leahy 1980:102). The Amerindian population of Tacarigua was 193 people and that of Arauca was 297 (Noel 1972:97). A total of 632 Amerindians, led by the Venezuelan Father Pedro Reyes Bravo, were transferred to Arima (Moodie-Kublasingh 1994:13).

The reason for amalgamating in Arima the Indians from the quarter of Tacarigua/Arouca was probably twofold, argues Leahy, a Trinidadian historian who belongs to the Dominican Order: "to give their lands to the new colonists, and to segregate the Indians, for their own good, from the newcomers" (1980:102). Earlier historians provide support for Leahy's conclusions (see Wise 1938:40 and Collens 1886:115).

Arima was to be the place of the Amerindians. One historian, who lived in Arima during its Mission days as a youth in a local elite planter family, attested to the location of the mission:

Soon after the (1783) settlement of the colony, these Indians had been formed into two missions at Tacarigua and Arima. But as the formation of ingenios, or sugar estates, was proceeding eastward, they were removed to the quarter of Arima, where a village was formed, and houses built by them, on about one thousand acres which has been granted for the formation of a mission, along the right bank of the river, and as the full and unalienable property of the inhabitants. [De Verteuil 1858:299-300]

A painter of the time also produced a valuable visual record of the Mission of Arima, as shown in Figure 1 below. In lieu of a photograph, this is perhaps the most concrete evidence we have of the layout of the mission, and especially of how land was used. In spatial terms, the Mission of Arima, like most missions, was structured around the Church. A central square dominated the Mission, with the Church located on the eastern side (where the sun rises), and the homes of the Amerindians located along the other sides, along with orchards, a small market, and later schools. The remnants of this spatial organisation are still evident in Arima, in Lord Harris Square, located just about two hundred metres north of the modern centre of Arima.

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Figure 1:

Painting of the Mission of Arima, by Jean-Michel Cazabon (1813-1888)



Cazabon's painting, circa 1850, and seen from the vantage point of Calvary Hill to the north of the village, shows the Hill to be pasture grounds. In addition, one can see the Church of Santa Rosa de Arima, at the left of the painting, situated on the eastern side of Lord Harris Square, which, one can gather, appears to be thickly wooded. There are also what appear to be the rooftops of small homes lining the square on its south side, towards the top of this picture. The southern slope of Calvary Hill, shown in the foreground here, is clearly being used for pasture.

Collens, a travel writer of the late 1800s wrote that "each head of family [had] his own conuco or allotment" of land to cultivate (1886:115).^[2] The Mission of Arima was dedicated to the first saint of the New World, Santa Rosa de Lima, born in 1586 in Peru, of Spanish parentage (Rétout 1976:46). Various authors give different dates for the founding of this new settlement (ranging from 1784 to 1786), with few disagreeing with the proposition that it was formally established in 1786, on the 200th Anniversary of St. Rose's birth (Rétout 1976:46). The first entry in the baptismal register is for 15 January 1789; Father Reyes Bravo was in charge from 1786 until 1819 (Rétout 1976:46). As was the case with all the other missions in Trinidad, festivities were held on the feast day of the patron saint of the mission, thus the Santa Rosa Festival was born.

Trinidad's Spanish élite was the primary sector that had interests in the Amerindian missions of the late 1700s and in the early years of British rule. Governor Chacón himself is said to have taken a personal interest in the formation of these new missions, having personally named the mission of San Juan de Aricagua (Rétout 1976:6). Don Cristóbal Guillén de Robles, a Royal Officer of the Treasury who had been in office from the 1750s to the 1770s (Noel 1972:45), was responsible for granting land for the mission of Arima.^[3] Don Manuel Sorzano, who had held the post of Contador de ejército, or Treasurer of the Military chest, under the Spanish Government (Fraser 1971 [1896]:15), is said to have actually founded

the Indian Mission in Arima, and acted as corregidor (administrator) of the Indians until 1815 (see Governor Woodford in Fraser 1971 [1896]:101).^[4] His son, Martin Sorzano, was also Corregidor of the Indians (Joseph 1970 [1838]:102), under the British colonial government. Spanish families in Trinidad retained, along with a paternal interest in the welfare of Amerindians (their workforce), significant tracts of land devoted to cocoa production, with a concentration of these in and around Arima.

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THE AMERINDIAN POPULATION OF THE MISSION OF ARIMA [\[return to top\]](#)

According to Coleridge (in Besson & Brereton 1991:123), the Amerindian population of the Arima Mission in 1824 consisted of 278 people alone, comprised by 60 men, 77 women, 81 boys, and 60 girls. Martin Sorzano, the Corregidor, stated to the Burnley Commission that the Amerindians in the Mission, “never exceeded 600, and have now [1841] fallen off to less than half that number” (in Burnley 1842:109). From my own research of the Baptismal Registers of the Santa Rosa RC Church, I compiled statistics on the number of people identified as “Indian” who were baptised during the period 1820-1852, as shown in Table 1. It must be noted that these statistics can only give one a rough impression, at best, of what the total Amerindian population of the Mission might have been, assuming that all children born were also baptised. What is also noteworthy is that the priests involved always noted the ‘race’ of those baptised. The designation of Indio for Amerindians continued to be written in only until the start of the 1850s, when it abruptly disappeared, roughly at the same time as the Mission of Arima was undermined, thus when this group of people lost their legal status as was assigned to classes of laborers who were ordered in terms of the racial hierarchy. Figure 2 in fact demonstrates some samples of these entries in the Registers.

Indio meant that the person had a legal right to live in the Mission, bound to it by law, with free use of inalienable land, and without the requirement of paying taxes. Unlike African slaves and indentured East Indians, their labour was not to be forced. Mestizo meant that the person was part Amerindian, part Spanish in parentage, no longer legally bound to the Mission. Their labour was still free, but they were also required to pay taxes. Race, in colonial Trinidad, was tied to rights, or the lack thereof. Specific peoples were assigned to particular categories of labour, and sometimes to particular crops (i.e., Africans and sugar, Amerindians and cocoa).

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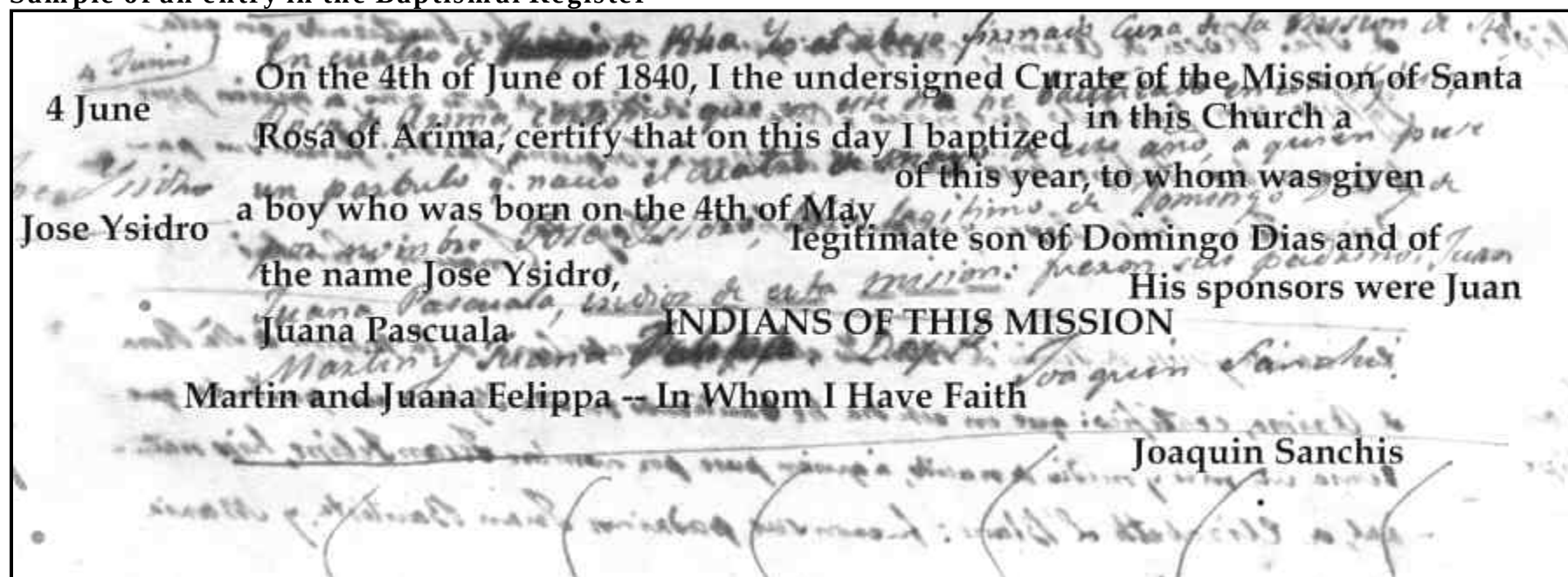
Table 1:
Baptismal Statistics for Amerindians in the Arima Mission, 1820-1852

TIME PERIOD	TOTAL # OF FORMALLY CLASSIFIED AMERINDIANS CHRISTENED	TOTAL # OF PEOPLE CHRISTENED	AMERINDIANS AS A % OF THE TOTAL
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1820-1835	192	1511	12.71%
1835-1840	51	497	10.26%
1840-1852	7	1446	0.48%

Sources: Baptismal Registers of the Mission of Santa Rosa, Arima: Book 1 (1820-1835), Book 2 (1835-1840), Baptismal Register of the Church of Santa Rosa, Arima: Book 3 (1840-1852)

Figure 2:
Sample of an entry in the Baptismal Register



This entry is of interest for its notation “Indians of this Mission” in the year 1840, a time when the mission was in the process of dissolution. The complete entry reads: “On the 4th of June of 1840, I the undersigned Curate of the Mission of Santa Rosa de Arima, certify that on this day I baptized in this Church a boy child who was born on the 4th of May, of this year, to whom was given the name José Ysidro, legitimate son of Domingo Dias and of Juana Pascuala, Indians of this Mission. His sponsors were Juan Martin and Juana Felippa, with faith, Joaquín Sanchis”.

In Table 2 below, we see the total number of people registered as Amerindians in the entire colony, meaning all those individuals who were formally and officially classed as such, and normally resident in established Missions. However, we must also keep in mind that large bodies of Amerindians resided outside of the Missions, especially those with ongoing contacts with relations in Venezuela, where they traveled to and from freely until the start of the 1900s. The Warao from the Orinoco Delta are a case in point, with populations moving between the mainland and the south-western areas of Trinidad around Siparia and Naparima, as well as the Central Range (see Massé 1878-1883; Cothonay 1893; De Verteuil

1995; Goldwasser 1996).

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Table 2:

Trinidad Amerindian Population Statistics, 1782-1838

YEAR	AMERINDIAN TOTAL	TRINIDAD TOTAL	AMERINDIANS AS % OF TRINIDAD TOTAL
1777 ^a		3433	
1782 ^g	2082		
1784 ^a	1495		
1786 ^a	1391		
1787 ^a	1414	11533	12.26%
1788 ^a	1428	11722	12.18%
1789 ^a	2200 ^g / 1432 ^a	13053 ^a	10.97% ^a
1790 ^a	1408	13247	10.63%
1791 ^a	1398	12009	11.64%
1792 ^a	1195	14009	8.53%
1793 ^a	1268	14744	8.60%
1794 ^a	1144	15519	7.37%
1795 ^a	1078	15279	7.05%
1797 ^{g,b}	1082	17718 ^f	6.11%
1799 ^g	1148		
1800 ^g	1071		
1801 ^g	1212		
1802 ^g	1166	28477 ^f	4.09%
1803 ^g	1416		
1804 ^g	1416		
1805 ^g	1733		
1806 ^g	1697	30043 ^f	5.65%
1809 ^d	1647	32095 ^f	5.13%

1812 ^e	1804		
1819 ^d	850	39935 ^f	2.13%
1821 ^e	956		
1824 ^c	893	41120 ^f	2.17%
1828 ^d	727	41020 ^{ft}	1.77%
1838 ^e	520	39328 ^f	1.32%

SOURCES:

a: Noel (1972:94, 96, 103, 104).

b: “Plan for the Isle of Trinidad made from actual surveys in the year 1797”.

c: The *Trinidad Almanac* for 1824, quoted by Coleridge (1825) in Besson & Brereton (1991:123).

d: Fraser (1971 [1896]:211).

e: Wood (1968:43-44).

f: Burnley (1842:110).

g: Fraser (1971 [1891]:288, 289).

† figure is for the year 1829

HISTORICAL NOTES:

1797: British capture of Trinidad

1802: Spanish cession of Trinidad

1808: Abolition of the slave trade

1824: Transfer of slaves from one British colony to another was prohibited

1834: Emancipation of slaves, start of Apprenticeship

1838: End of Apprenticeship

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The Identities of the Amerindians [\[return to top\]](#)

In an effort to obfuscate issues of just claims to ancestral properties, sometimes one may encounter those who seek to cast doubts on the veracity of the identity claimed by the descendants of the Mission Amerindians. One way is to suggest that while the contemporary Carib Community calls itself ‘Carib’, the Mission Amerindians were instead Arawaks. In linguistic terms, this is simply false: Amerindians in the Mission of Arima were those relocated from the Missions of Caura, Arouca and Tacarigua, all of whom were formally noted as Nepuyos (see Figueredo & Glazier 1991:238; Whitehead 1988:10; Espinosa 1968:37; Borde 1876:40; and, Wise 1938:87). Yet, Nepuyo is a branch of the Cariban language family.

Others may attempt to argue that Amerindian descendants in Arima are not “true local Caribs”, and may often instead hail from Venezuela or Saint Vincent. In actuality, that has been the normal condition for Trinidad: for several thousand years it has been inhabited and criss-crossed by almost a dozen different indigenous ethnic groups from what are today known as eastern Venezuela, the Orinoco Delta, Guyana, and the Lesser Antilles. “Trinidad” and “Venezuela” are modern

abstractions produced by a state-centric perspective that makes no reference to prior indigenous realities; “Trinidad” and “Venezuela”, as separate politically bounded entities, have no meaning within indigenous history. Indeed, if the Arima Caribs possessed only and entirely local origins, that is when one should become suspicious because the realities of population movements, migration, trade, marriage alliances, and so forth, dictate a very different reality. In addition, where the Mission of Arima is concerned, the authorities did in fact seek to settle mestizos and Venezuelan indios in and around the Mission, given the cultural similarities between them and their Trinidadian kin, the need to maintain a sizeable workforce, and the desire to provide the Mission Amerindians with role models of industrious, devout, yet free individuals who were no longer under the tutelage of missionary priests. If the authorities had tried to impede the settlement of individuals and families from Venezuela, they most likely would have failed in any case. Indeed, Arie Boomert found that “throughout the 18th and 19th centuries Amerindian groups from the mainland and Lesser Antilles went to live in Trinidad, with or without consent of the government” (Boomert 1982:37). In other words, flows between Trinidad and Venezuela were the norm; the current situation of linguistic separation, different citizenship, and limited trade between the two territories is abnormal when seen in a long-term historical perspective, and it should not be naturalised and extended backwards into time.

At any rate, one basic point remains unresolved for the descendants of Amerindians in Trinidad: unlike any of the groups of people who in fact possess no aboriginal ties to the land in Trinidad, and who came from distant territories in Africa, Asia and Europe, the Amerindians were to be denied parcels of land. Emancipated African slaves at first formed an independent peasantry with the plots of land that they obtained. Ex-indentured East Indians were given lands at the termination of their contracts. Europeans had little problem in simply allotting themselves land as conquerors. Aboriginal peoples, and their modern day descendants, were the only ones to have lost their nation without having moved, and to have lost lands that ultimately only they could lay claim to.

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In terms of the identities of the Amerindians of Arima, what did the Amerindians call themselves? There is not much written evidence to answer this question. The only account is that of De Verteuil, who witnessed the Arima Mission in its last decades and attended its festivals. He says: “The Indians of Arima called themselves Califournans” (De Verteuil 1858:300). This source suggests that these must have been French-speaking Caribs from St. Vincent, where the name Califuna was in use. Califuna, sometimes transcribed as Karifuna, is a cognate of words such as Carib, Cariña, Calina, and Calinago. The presence of Vincentian Califuna in the Arima Mission can be explained as follows. In 1786,

Governor Chacón granted some land to a group of Kalinago (Island Carib) from St. Vincent. They settled in the Salibia area of northeast Trinidad. Most of them returned home in 1795 but other island Caribs came to Trinidad after a volcano eruption had destroyed their settlements in St. Vincent in the early 19th century. They were granted land near the Arima mission. [Boomert 1982:37-38]

Therefore, descendants of these migrant populations also had rights to land, as these had been granted to them. That is not the same thing as saying that all indigenous persons in either St. Vincent or Venezuela can make a claim to land in

Trinidad; what it does mean is that those with ties to Trinidad, and who lived here precisely because they had the land that would permit them to do so, would indeed be able to make claims to land in Trinidad.

THE LEGAL AND ADMINISTRATIVE ORGANISATION OF THE MISSION OF ARIMA [\[return to top\]](#)

According to De Verteuil (1858:300), the Mission was under the governance of a municipal council headed by Amerindians of the Mission, and under the control of the priest. In addition, under the British, a corregidor was appointed as well as a protector to whom the Amerindians could appeal against any arbitrary act of the corregidor. After the Spanish cession of Trinidad in 1802, the British vowed to uphold Spanish laws and institutions, in line with the terms of the cession.

All the Amerindians of the Mission, who were fit for work, were obligated to work two days of each week for the support of the community, employed in such tasks as cleaning the village and farming common lands. In addition, each head of family had his own personal allotment of land (De Verteuil 1858:300), as noted before. The Amerindians of the Mission were not subject to taxation, but were bound to serve as a public workforce when ordered by the corregidor, and had to accompany the latter, when required, and be paid wages in return (De Verteuil 1858:300). The Amerindians were not entitled to sell or otherwise dispose of their property, which descended to their heirs. As De Verteuil argued, “the Indians were considered in the light of minors”, and this measure was in force to “protect” them since, “the moment they became emancipated, they sold what property they had for a mere trifle” (De Verteuil 1858:300). Indeed, De Verteuil’s suggestion here is that this is one reason why Arima’s ex-Mission Amerindians would eventually evacuate from Arima. Of course, such a suggestion also masks the fact that local elites wished to acquire their lands and certainly went some way toward covering up the facts of how aboriginals lost their hold on land, and the De Verteuil family was certainly a part of the local oligarchy.^[5]

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The church was the center of the social, political and religious organisation of the Mission. The church building itself was in fact originally constructed by the Amerindians (De Verteuil 1858:300), and as noted by Governor Woodford, writing in 1817 on extant churches in Trinidad, “St. Rose of Arima: A thatched house built by the Indians” (quoted in Leahy 1980:37).^[6]

The church, and the ceremonies enacted within it, were themselves critical parts of mission organisation: “the missionaries very skilfully played upon every conceivable natural desire. They emphasised the externals of their religion—the ceremony, the music, the processions” (Whitehead 1988:141). In line with this, we see a number of patronal feasts celebrated throughout the various mission towns of colonial Trinidad, with records for the 1750s speaking of the festivals of Saint Augustine (San Agustín) and Saint Paul (San Pablo), patron saints of the towns that bore their names, and

governed by “the corregidor of the Nepuyos, Gabriel Infante” (Noel 1972:36-37, emphasis added). The Santa Rosa Festival in Arima had its roots in this milieu, as did Trinidad’s only other surviving mission festival, La Divina Pastora in the town of Siparia in southern Trinidad (see Goldwasser 1996).¹⁷¹

The alleged intent of the church itself was to preserve the ‘racial’ and residential integrity of the Amerindian community under its control. Friars had, “prohibited ‘mission’ Indians from contact with ‘bush’ Indians, Negro slaves, mestizos or other Spaniards and kept them confined to the missions” (Harricharan 1983:22). Noel argued that one of the successes of the Capuchins, “seems to have been the partial preservation of the Indigenous race as agricultural workers under the external guise of living a Catholic life” (1972:18).

The Rights of the Amerindians and the Extent of their Lands [\[return to top\]](#)

As noted above, Amerindians in the Mission of Arima held lands in common, plus lands allocated to individual families, and earned incomes and possessed such properties free of any taxation. The Catholic Church acted as the parental guardian of the Amerindians, and thus also exercised a right to overall control of the Mission, as was the case before the British Conquest and was to legally remain after the Treaty of Amiens in 1802.

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Going back to De Verteuil, a historian in Trinidad during the early half of the 1800s when the Mission of Arima was still intact, he explains: “The Indians were considered in the light of minors, and could not sell or otherwise dispose of their property, which however descended to their natural heirs” (De Verteuil 1858:300).

Donald Wood, a noted historian of Trinidad, reported that by 1846 the Amerindians of the Mission of Arima, “held 1,000 acres from the King of Spain and 320 acres from Sir Ralph Woodford” (1968:44). The fact that Spanish laws were still in force under the British, after 1802, is demonstrated by a British Governor himself, who even went as far as adding more land to the Mission.

Recorded testimonies of the time also provide concrete evidence of the extent of the lands held by the Mission of Santa Rosa de Arima. Testifying before the Burnley Commission, the actual corregidor of the Mission himself, Martin Sorzano, was recorded in the following exchange on Friday, 16 July 1841:

[Question] 559. Do they [the Indians] not hold a tract of land set apart for their own use?

[Answer by Sorzano:] Yes, a tract of about 1,000 acres, granted to them by the King of Spain, to which Sir Ralph Woodford added afterwards 320 acres, in consequence of their complaining of a want of provision

grounds. [Burnley 1842:109]

Evidence of Spanish Laws Enforced as per the Treaty of 1802 [\[return to top\]](#)

It is important to understand that the fact the British enforced Spanish laws after 1802 stemmed from the Treaty of Amiens, and evidence of such enforcement is also evidence that such laws were recognised. In recognising these laws, British colonial authorities were also recognising their obligations toward the Amerindians of the Mission of Arima.

The arrival of Sir Ralph Woodford in Trinidad on 14 June 1813 as the new Governor of the colony provided the clearest evidence of the laws in force, and as enforced. As an acquaintance of the Governor and writer of the time noted, Woodford, “regarded himself not as representative of a constitutional British sovereign, but as a Spanish viceroy, armed with the most absolute authority” (Joseph 1970 [1838]:248). As late as 1838, the Spanish colonial code known as the Laws of the Indies, compiled in 1680, remained in force in Trinidad to some extent (Joseph 1970 [1838]:111). One of the titles inherited by the British Governors of Trinidad from their Spanish predecessors was that of ‘Royal Vice-Patron of the Holy Roman Catholic Church’ (Fraser 1971 [1896]:10). This title had been held by Spanish colonial governors as representatives of the Spanish Crown, with the Spanish monarch having been conferred the title of Royal Patron of the Church by Pope Julius II (Bull, 28th July 1508) (Fraser 1971 [1896]:10). In line with this, one historian explained that “the office of Vice-Patron was not only one of dignity; it possessed many well defined powers and duties which Sir Ralph Woodford exercised with more strictness than any of his predecessors, whether Spanish or English” (Fraser 1971 [1896]:10-11). One of these duties, of course, was to uphold the Roman Catholic Church, Spanish laws, and the Indian missions. Interestingly, a monument in the Roman Catholic Cathedral of Port of Spain commemorated Sir Ralph Woodford as “Founder of the Church”, the foundation of the Cathedral having been laid “with great ceremony” under Woodford on 24 March 1816 (Collens 1886:79-80).

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As Royal Vice-Patron of the Holy Roman Catholic Church, Sir Ralph Woodford also took a special interest in the Mission of Arima, and it was he who largely reconstituted it for its final two decades of life in Trinidad.^[8] In 1818, “desirous of re-establishing the Mission of Arima in the rights and privileges which the Laws accord to the Indian”, Woodford appointed Captain William Wright to take charge of the Mission (Woodford quoted in Harricharan 1983:45). The following is a statement issued by Sir Ralph Woodford in this regard and the rare voice of this actor is worth quoting at length:

The Governor and Captain General being desirous of re-establishing the Mission of Arima in the rights and privileges which the Laws accord to the Indians, and of contributing by all the means in his power to its improvement and prosperity, has decided to name as its Corregidor an Officer of His Majesty’s Forces who possesses all the qualities needed for such an important post...In Don William Wright the Indians will find all aid and protection, their person and property will be under his immediate care; he will encourage their

industries and render their trades profitable to themselves, so that their children following the example of their activity, may be useful and virtuous, and the lands which the Law allows them may be constantly kept in cultivation by the able-bodied amongst them...The Governor hopes that the Indians on their part will co-operate in his good intentions on their behalf by obeying all that the Laws enjoin upon them, by being sober and industrious, and carrying out their respective duties as submissive fathers, wives and children, and especially by seeing that the latter attend regularly to hear and to learn the Christian Doctrine so strictly enjoined by the Law, on the days and hours fixed by their venerable Parish Priest...The above notice is to be communicated to them and put up on the Casa Real of Arima—Ralph Woodford, Government House, St. Ann's, Trinidad, 27 June 1818. [quoted in Fraser 1971 (1896):102, emphasis added]

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In a letter to Captain William Wright, Woodford instructed the latter to execute the following commands, as quoted in Fraser (1971 [1896]:102-104). First, upon taking charge of the “Village of Arima”, Capt. Wright was to obtain a general return of the Indians from his predecessor. Second, Woodford instructed Wright to “proceed to make a return of them by families, shewing [sic] their lineage or descent as well as their trades, and if intermixed with other than Indian blood”.^[9] Third, Wright was to examine all dwellings of the Indians, noting their state, and make plans for their maintenance (in the case of widows, the elderly and the infirm) by demanding a “general contribution of labor”, or to compel ‘the idle’ to fix their own homes. Fourth, Woodford instructed Wright “to inquire into the tenures of the houses built by others than Indians of which many have been introduced into the Mission without my knowledge or concurrence”, to examine titles in order to learn if lands were purchased from Indians, and then to take action given, “the laws expressly forbidding and annulling any such sales”. Fifth, Wright was to “call upon all persons not being Indians, residing in Arima, to show my [Woodford’s] permission for the same, and in default of their possessing it”, he was at liberty, “to order them to quit the Mission within a reasonable time to be fixed according to the nature of their establishment; for those having none a very short notice will suffice”. Sixth, Woodford requested that Wright “cause all strangers to be apprehended that enter the village not being furnished with my permission to reside in this Island”, and to prohibit “any person henceforward to reside in Arima that has not my express authority for that purpose”. On the other hand, Woodford added, it may be “desirable to attract respectable inhabitants and useful artizans [sic]; the former may be encouraged and the latter permitted to exercise their trades upon condition of teaching the same to one or more young Indians under the usual stipulations of apprenticeship”. Seventh, Wright was to formally delimit the boundaries of the village, and command the Indians to plant a lime fence along its boundaries. Eighth, Wright was required to “inspect with the greatest attention and care the Conucos or provision grounds of the Indians situated within the limits of the Mission, taking a note of the extent and condition of each, the nature and degree of the cultivation, notifying all persons encroaching therein to justify themselves before you in the first instance”. Ninth, Wright was commanded to “not allow any of the Indians to work abroad until you shall receive further orders for your guidance, and you will order back to the Mission those who now may be employed abroad”. Tenth, the Indians were to be ordered to maintain the public infrastructure of the Village, and their presence at Mass on Sundays and the ‘great holidays’ was to be enforced. Thus Woodford set about enforcing and consolidating the Mission of Arima, possibly to a greater extent than had been done before.

Woodford never failed to support the Cabildo, or municipal council of Arima in any move aimed at “guaranteeing Arima as Amerindian territory” (Anthony 1988:3). Indeed, Woodford took a leading role in preserving Indian rights over the territorial integrity of the Mission. Three individuals with commercial agricultural interests complained to Governor Woodford about the steep rents they were asked to pay for the use of lands in Arima. In reply, Governor Woodford wrote, and this is worth reproducing in detail:

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To the Marquis del Toro, Don Francisco Toro, and St. Hilaire Bégorrat, Esq.:—Gentlemen, I have received and considered your representation on the 12th ult. and in reply have to observe that the ground rent which the Indian Cabildo of the Mission of Arima have (sic) imposed on the lots occupied in the village by others than Indians received my consent and approbation...As regards the right of the Indians to impose this charge, the existing documents prove that the land of Arima was given to them (the Indians) as their property in community, with an exclusive and untransferable right to the employment thereof to the best advantage for their general benefit, and as I am not aware of their having by any act forfeited their right to claim rent for any land belonging to them in common, I am advised that it was competent to them to impose a ground rent on lots belonging to them in Arima... As regards the transfer of lots, it is within my knowledge that Don Manuel Sorzano who established the Mission, never permitted any transfer but of the houses, and not of the lots themselves, and Mr. Goin and Mr. Francisco Febles have declared the same; they could not indeed legally authorise the transfer of any portion of any portion of the Mission lands or of the property of that establishment. As to the occupation of these lots since 1783, and the invitations given by the Spanish Government to strangers to resort to Arima, I have to observe that in 1797 only two white persons and nine colored men (married to Indian women) were then living in the village, and notwithstanding every search I remain quite ignorant of any regulation of Governor Chacon or of His Catholic Majesty that might have altered the Law regarding the settlement of strangers in an Indian Mission—I have, &c., &c., Ralph Woodford, Government House, 26th October, 1819. [quoted in Fraser 1971 (1896):101]

Both Governor Woodford and Capt. Wright assumed a patronal role with the Amerindians of the Mission of Arima. In the case of the latter, very little is written except that I found evidence in the Baptismal Registers of the Church of Santa Rosa that Wright became a formal godparent to at least one Amerindian child. Wright also married a local ‘white’ Spanish woman, Serafina de Orosco, which resulted in a child born on 12 November 1825. ^[10]

Woodford also regularly patronized the Santa Rosa Festival. As Anthony (1988:4) found: “Woodford never failed to journey to Arima for the feast of Santa Rosa, celebrated on August 31. Woodford, referred to as ‘Gouverneur Chapeau Paille’, because he always wore a straw hat, cut a merry figure on those occasions, enjoying himself with the Amerindians during this festival of dancing, sport, fruit and flowers”. Of especial interest is the following passage, by De Verteuil, quoted in full here given that at the time of Woodford’s attendance at the Santa Rosa Festival, De Verteuil was a boy, who grew up in the Arima area, and was an eye-witness to the festival according to Rétout (1976:46). De Verteuil thus describes

the festival:

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The village of Arima was formerly, and for a long time, celebrated for its festival of Santa Rosa, the patron saint of the mission. On that day the Indians elected their king and queen—in general, a young man and young girl—and all appeared in their best apparel and most gawdy ornaments. The interior of the Church was hung with the produce of their industry—bunches of plantains, cassava cakes, and the fruits of the season; game of various descriptions, coincos, lapos, parrots, &c., and draperied with the graceful leaves of the palm tree. After mass, they performed ceremonial dances in the church, and then proceeded to the Casa Real, or royal house, to pay their compliments to the corregidor, who gave the signal for dancing and various sports—among others, that of archery, in which the men exercised themselves until a prize was adjudged to the best marksman. People from all parts of the country would resort to Arima for the purpose of witnessing the festivities, which were invariably attended by the governor and staff. Sir Ralph Woodford, in particular, always took the greatest interest in the mission, and every year would distribute prizes to the children of both sexes, who deserved them by their good behavior, and their improvement at school. [De Verteuil 1858:301]

Woodford's statements are thus direct testimonial evidence of the laws in place, as enforced by himself as Governor of the Colony, and of the rights of the Amerindians of the Mission of Arima.

THE UNDOING OF THE MISSION AND THE ALIENATION OF LANDS [\[return to top\]](#)

Several forces and developments conspired to displace Amerindians from the Mission lands of Arima. After Woodford died en route back to England in 1828, "Arima was not preserved as a mission", instead, "the Governors who came immediately after Woodford—Lewis Grant in 1829 and George Fitzgerald Hill in 1833—did not seem to care about Spanish-founded missions, which in fact were missions for converting the Amerindians to the Catholic faith, a faith which the British did not profess", and, as Anthony observes, "in any case these were the years just before the end of slavery, and the Governors mentioned were much too busy making preparations for that crucial period" (Anthony 1988:4). The Spanish laws that Woodford was careful to uphold, were only retained until the period between 1832 and 1840, and the Mission was effectively terminated, as some argue, in the 1840s (Moodie-Kublalsingh 1994:156).

Speaking in 1841, Martin Sorzano, the former Corregidor of the Mission of Arima, had these replies to questions posed by the Burnley Commission on the current state of the Mission:

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[Question] 563. Is the mission, then, broken up?

[Answer by Sorzano:] Virtually it is so. No regulations are now enforced, and those who remain there follow orders, because they have the benefit of the crops of cocoa belonging to the mission...

[Question] 564. As they appear to have emancipated themselves from the regulations of the mission, do you think they have any legal claim to either the cocoa or the land at present?

[Answer by Sorzano:] I should think not; but it is a legal question, which I am not competent to answer. [quoted in Burnley 1842:109, 110]^[11]

Note that the Burnley Commission made it plain that it had an interest in ascertaining if lucrative cocoa lands in Arima were open to acquisition, with another eye on the potential problems that could be caused by descendants making land rights claims. It was convenient to argue that the Amerindians were “nearly extinct”, as this would automatically make their lands open to sale. As one Arimian wrote: “in the year 1830 there still existed 689 survivors of that [Amerindian] race; the ratio of mortality among them being, in the same year, 3.49, and that of births 3.75 per cent. At present there cannot be above 200 or 300 Indians in the colony, so that the aborigines may be said to be almost extinct” (De Verteuil 1858:172). Though it may be a ‘conspiratorial’ thesis, one might argue that the statements made before the Burnley Commission, relying on racial statistics as evidence, may have been designed to minimise the presence of Amerindians, and to diminish their legal ties to the Mission, in order to produce justifications for the seizure of their lands, the latter eventually having occurred. What is more clear is that aboriginal descendants in Trinidad, unlike any of the other major groups who performed servile labor, were to be denied any rights to independent and compensatory parcels of lands once their period of labor service on the Mission was ended. In addition, unlike with Africans and East Indians, aboriginals were deemed to be ‘extinct’ if they produced miscegenated offspring, the logic being that if the ‘race’ is ‘impure’ then the race is no longer a race, and those with aboriginal ties to the land no longer exist. This formula, that says the only “real Caribs” are the “pure Caribs”, and the only “pure Caribs” are now “dead Caribs”, emerged within the colonial scheme for ordering racial groups and their attendant rights and statuses. What it achieves is the abrupt disconnection between miscegenated offspring and their ancestral lands.

Encroachments on the land base of the Mission Amerindians of Arima occurred in a variety of ways. First, the law under the British began to posit pre-British Trinidad as a virtual terra nullius. Even Governor Woodford had been advised by Mr. Huskisson, Secretary of State for the Colonies, in a dispatch:

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Immemorial possession in the strict and absolute sense of the term seems indeed to be acknowledged as a valid title. But it might perhaps be difficult to rest any title upon that ground with reference to Lands situate in a Colony which within a period comparatively recent was an unoccupied wilderness, and one in which the rights of the Crown must in theory be conceived to have been absolute and universal before the settlement of the Colony commenced. [Quoted in Fraser 1971 (1896):222-223, emphasis added]

This statement, noteworthy given the office which issued it, directly contravenes the terms of Treaty of Amiens of 1802. The British authorities knew full well that Trinidad was an inhabited island when they began to “settle” it. Even before colonial settlements, of any kind, by any nation, clearly the 40,000 or more original Amerindian inhabitants of the island preceded the presence of the Crown, whether the Crown be Spanish or British. Such notions, as laid out above, permitted British colonial governors in Trinidad to feel justified in demanding evidence of titles to lands occupied by non-British inhabitants, ignoring the basic fact of their preceding rights.

The erosion of the Arima Amerindians’ land base occurred via a variety of concrete measures. As De Verteuil summarised at the time:

In 1834, when a stipendiary magistrate was appointed, the Indians were brought under the common law, and the corregidorship was abolished. In 1849, after the passing of the territorial ordinance, the lots in the village were put up for sale at an upset price – a measure the legality of which is highly questionable, as far as the Indians were concerned, since the lands lost in the mission had been granted to them as a compensation for property of which they had been deprived. [De Verteuil 1858:300]

Indeed, De Verteuil reminds us of a critical point: lands provided for the Amerindians of the Mission of Arima were not provided as a “gift” to them, nor simply for the purpose of sustenance only while they remained on the Mission. The lands were provided as a compensation for an earlier act of expropriation, following 1783 when French Caribbean planters entered the colony and were given Amerindian lands in and around what are today known as Caura, Arouca, and Tacarigua.

Between 1846 and 1850, Governor Lord Harris authorized the selling of 96 plots of land in Arima, and some Amerindian families had secured formal title to only nine of these, followed even there by an apparent sell-off later on. Perhaps as many as 200 Amerindian families found themselves in a depressed economic environment, without land, and without work. As Moodie-Kublalsingh reported, there was a migration of squatters to districts to the east and south of Arima, presumably including many of these displaced Arimian families. Laborers often deserted for the higher wages available on sugar estates, thus setting the stage for the eventual labor shortage that areas such as Arima would face during the subsequent cocoa boom. ^[12]

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The administration of Governor Lord Harris (1846-1854) reorganized and defined geographic boundaries in Trinidad, thus creating Ward boundaries in 1849, and embarking on the collection of Ward rates for public works development; however, those who could not pay the new Ward rates, or did not understand the law, had their lands confiscated and sold (Anthony 1988:323). Moreover, formal title to lands had to be demonstrated, or land deeds registered, which worked against Arima’s Amerindians who either possessed no such written deeds, were not informed as to the new policies, and in many cases could not read (Moodie-Kublalsingh 1994:6). Self-described as Arima’s “sturdy beggars”, some cocoa planters

vowed to fight new taxation laws that also militated against established land ownership in Arima.^[13] In 1849, after the passing of a new Territorial Ordinance, the Amerindians became the only group in Trinidad whose freedom from bondage was rewarded with the expropriation of their lands.

The whole process conducted by Governor Lord Harris was quite ironic given that he, next to Woodford, was the alleged favourite of the Amerindians of Arima. Father Louis Daudier learned from the few remaining elderly Amerindians of Arima of how Lord Harris Square came to acquire that name:

It carries the name of Lord Harris only because this Governor, having the greatest interest in the Indians living at Arima and having deigned to put himself into good and amicable relations with Père Sanchez [former prelate of the Mission], often came to Arima, and gave on Santa Rosa's Feast day innocent amusements to the Indians, on this square; and he had trees planted to beautify it but not to take possession of it, nor to change the order of things. So, in gratitude the Indians called the square Lord Harris and the name became official.^[14]

Thirdly, the land base of Arima's ex-Mission Amerindians became of interest to squatters as well, and Amerindians themselves apparently drifted away from Arima in search of plots on which to squat, moving thus to districts to the east and south of Arima prior to 1870 (Stephens 1985:27; Moodie-Kublalsingh 1994:5). "As the population of Arima grew", notes one historian, "the Caribs retreated into Calvary Hill and other outlying districts", and, "as the town became more populated they moved to places where abundant land for planting, rivers for fishing and forests for hunting were available" (Garcia 1991:8). Following the emancipation of slaves in 1838, there was increased squatting on Crown Lands, becoming a "huge problem" according to one author (Moodie-Kublalsingh 1994:5), and was a development that would itself facilitate the development of the cocoa industry with most squatters found to be engaged in cocoa cultivation (Stephens 1985:14). In the 1850s new cocoa fields were being opened in Tacarigua, Chaguanas, and Arima (Stephens 1985:14-15).

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The combined result of these various laws and developments from 1828 to 1849, affecting the Arima Amerindians' land tenure, as well as the laws that worked to abrogate the Mission, was the dislocation of most Amerindian families from Arima and the depression of the few that remained. These, at any rate, form the core of descriptions of the post-Mission Amerindians.

Writing in the 1850s, De Verteuil relates his meeting with some remaining Arima Amerindians. He begins by telling us that, "few of them are now alive", and then proceeds to describe an elderly couple he met:

the patriarch (about one hundred years old), and his wife, are good specimens of the race or tribe. The old man is short and square-built, with high cheek bones, small eyes, and straight, white hair; his wife presents a similar appearance, and both are borne down by the weight of years. Pascual is always gay, and seems satisfied

with his lot; he is fond of spirits, and becomes drunk whenever an opportunity is afforded; he is otherwise most honest and peaceable. The old man has sold his conuco, and now depends upon the padre or parish priest for his maintenance. [De Verteuil 1858:300-301]

De Verteuil also informs us that there were two schools, one for boys and another for girls, that, “were once maintained for Indian children, but, owing to the paucity of attendance, are no longer so” (1858:301). Speaking to the question of their economic dispossession, Father Daudier notes: “As to the indigenous population, they are ruined without means by the last fiscal measures of the Government, and there is nothing to hope for in any way”.^[15]

Reflecting on the effects of these processes, a French priest stationed in Trinidad, one who toured the colony extensively and made notes, wrote in his journal on 30 November 1888:

I need to say a word on the ancient inhabitants of Trinidad. Bit by bit they were forced to disappear, for the most part dying of misery or moving to the coasts of South America. A certain number resided in the interior of the island, and mixed with the Spanish, forming a type which is very recognisable...It is in the parish of Arima where one finds them, most of all. Monsieur le curé [Father Louis Daudier] believes to have from 70 to 80 of pure Indian blood and around two hundred with mixed blood. I went to Arima, a few weeks ago, and he showed me a whole family that I examined and interrogated at my ease. These Indians are big and well built, but the makeup of their faces, the eyes above all, manifestly demonstrate that they are at least cousins, if not brothers, of the Chinese or the Japanese...The Indians of Arima are all Catholics and speak nothing other than Spanish...They have some franchises and rights which the government concedes to them; but, since ten years ago, they sold their lands, because, it seems, they were not cultivating them anymore. Today they live isolated in the forests and will one day soon be extinguished. M. le curé of Arima wanted to take up their cause with the government, but he was not able to succeed with these plans...Up to our time, these poor people have conserved a simulacrum of a king. The last, called Lopez, died this year...As he had no one to inherit from him, all the Indians gathered together and chose as king the relative nearest to the deceased. I have no details about him, but I know that he is a poor Indian who lives in a hut and has nothing royal to him except the title...What a strange country is ours! Not so?. [Cothonay 1893:98-99]

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As a reader, I would dispute the notion that the lands were no longer being cultivated, or that suddenly the lands on which their very homes were built were no longer needed. This is possibly the most suspect part of statements as to why Arima’s Amerindians lost their lands, and it ignores the evidence already provided here about the colonial governments’ measures at putting up their lands for sale.

The Political Economic Displacement of a People [\[return to top\]](#)

Ultimately, one of the reasons why the Amerindians of Arima lost their lands was due to the changing value of Trinidad's major cash crop exports. As long as the lands they occupied were suited to producing relatively low value agricultural commodities, their possession of lands was safe.

Cocoa, the mainstay of the Mission of Arima, faced a glut in the world market by 1827, and prices fell by 90% (Stephens 1985:14). Not only did this lessen the economic importance of Amerindians in the colony, there was also an associated decline in the fortunes of their 'patrons', ^[16] Trinidad's remaining Spanish landed oligarchs. Following the influx of vast numbers of wealthy French and free colored planters from 1783 onwards, along with the formal takeover by the British in 1797, adding yet another strata of higher ranking élites, the Spanish found themselves progressively marginalized: in 1802, Governor Picton stated that there were only six or seven Spaniards of "any respectability" in Trinidad (quoted in Newson 1976:194).

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One of the reasons the colonial authorities invited French sugar planters to settle Trinidad was due to the fact that, throughout the 1700s, Trinidad suffered repeated failures of its cocoa crops. In 1787, Trinidad's sugar exports were worth 65,360 pesos, while cocoa exports were worth only 8,400 pesos; by 1795 805 fanegas were under sugar cultivation, and only 142 were under cocoa (Noel 1972:114). The Arima Mission was thus of marginal value to colonial authorities and the Trinidad economy, and by the 1830s world prices for cocoa—the mainstay of the Mission's economic production—began to plummet (Stephens 1985:14). ^[17] Spain, at the time, was Trinidad's largest market for cocoa, and along with the fall in Spanish demand, Spain imposed high duties on cocoa imports from non-Spanish colonies, with even higher duties charged if the cocoa was transported in non-Spanish ships. ^[18] In addition, crop failures were reported for three consecutive years from 1836 through 1838. ^[19]

The problem, in retrospect, was the cocoa producing lands of the Arima Amerindians did not remain worthless. King Sugar would inevitably be dethroned at some point. Following this period of depression in the cocoa industry, cocoa enjoyed another boom. A combination of high prices, high yields, and low wages set the stage for this cocoa boom of the 1870s-1920s. Moreover, demand for cocoa in Europe and North America expanded tremendously, and this was "the most important single reason for the expansion of cocoa in Trinidad" (Brereton 1991:317). In 1870, 8.5 million pounds of cocoa were exported comprising 14.33% of export value; by 1920, after a steady increase, cocoa reached 62.7 million pounds exported, or 43.39% of total export value (Stephens 1985:17; see also Collens 1886:225; Brereton 1979:19-20; Moodie-Kublalsingh 1994:1). In the 1870s, 19,000 acres of land were under cocoa cultivation, increasing to 200,000 acres in 1920 (Stephens 1985:17). Land in the traditional cocoa areas was in immediate demand (Stephens 1985:18). Indeed, in the 1860s, 80% of the 16,020 acres under cocoa cultivation were in the north (Moodie-Kublalsingh 1994:7). Moreover, from 1899 to 1920, the number of cocoa estates grew from 450 to 966 (Stephens 1985:64-64). Trinidad became the fourth largest producer of cocoa in the world, and, in 1898, for the first time in the history of British Trinidad, cocoa exports exceeded those of the sugar industry in value (Moodie-Kublalsingh 1994:1).

While one may imagine the possibility that Arima's ex-Mission Amerindians might have returned to work on cocoa estates in the vicinity of where they once lived, where they might have worked as sharecroppers or as peasants seasonally employed on estates, many other were simply forced to relocate to other parts of Trinidad, some even further away. The cocoa boom did occasion the arrival of massive numbers of Venezuelans, many of whom were also partly of Amerindian ancestry, most likely descendants of former Mission Amerindians in Venezuela, which like those of Trinidad had been established by Capuchins and sometimes exchanged staff between the island and the mainland. Many of the Venezuelan mestizos married local Caribs. We have a very rare testimony by one such individual, Pedro Valerio, descended from local Carib and Venezuelan Amerindian ancestors, living as a squatter outside of Arima in fairly wretched conditions. Pedro Valerio was born around 1880 in Tortuga, a small village in Trinidad's Central Range, and was, as Brereton put it, "the son of a light-skinned Spanish-Amerindian father and a dark-skinned African-Carib mother" and his parents "were both born in Trinidad, but their parents had emigrated from Venezuela some time in the early nineteenth century" (Brereton 1979:133). Pedro Valerio tells us that "the section of the country in which we lived at that time was newly settled" (Valerio 1991:323), an area which had been opened by cocoa cultivators, some of whom, we might assume, had also migrated from the Arima district. In his autobiography Valerio gives us the following account of his family:

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I was born in a miserable little thatched hut, on the outskirts of the small village of Tortuga, in the island of Trinidad, British West Indies. To the villagers, my father and mother were known respectively as José Tiburcio Valerio, and Eleonore Valerio; both being natives of the island. From them I have inherited a natural legacy, which it is perhaps the privilege of comparatively few people to fall heir to, and the possession of which I dare say the majority of them would be only too willing to ignore. This legacy consists of a mixture of three strains in my blood: the Caucasian, the Indian and the Negro. My father, a man of small stature, was born of white and Indian parents, and, in color and other external characteristics, would have had no difficulty in passing for a white man. My mother, a dark-skinned woman, also of small size, and very kindly disposition, is descended from the Negro and the Carib Indian; the latter being now almost extinct on the island. [Valerio 1991:322]

He himself became a doctor in the United States. Valerio explained his choice thus:

The wretched condition in which my parents lived, the grinding toil and poverty, the hardships and sufferings of my childhood, had aroused in me the strongest sort of determination to better my condition...I must acquire an education, and, if possible, a profession, a physician for choice, because of the terrible suffering, due largely to ignorance, which I had seen and experienced among the class of people into which I was born. [quoted in Brereton 1979:133]

There is little reason to doubt that the loss of independent lands in Arima significantly affected the welfare of the Amerindians and their descendants, causing many to lose what could have been substantial incomes, prime properties in the centre of Arima, and the necessary basis for a healthy and rewarding quality of life. That they would lose these lands directly violates the letter of the Treaty of Amiens, which stated that those resident in Trinidad prior to British occupation

were not to be “molested in person or property”.

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ASSERTING THE RIGHTS OF THE MISSION AS NOT EXTINGUISHED: THE CATHOLIC CHURCH [\[return to top\]](#)

Arima became the centre of persistent conflict between the Catholic Church and the Governors of the Crown Colony, at least until it was chartered as Royal Borough in 1888. Priests stationed in Arima often developed paternal feelings toward the Amerindians who remained in the village, as one Parisian priest, Father Louis Daudier would write fondly of “my little Indians and their mules”.^[20]

The dominant classes in Trinidad were divided in the late 1800s and in competition with one another. As Wood indicates, the “free classes” were divided by religion and language, to a degree that set Trinidad apart from the older British colonies in the Caribbean (1968:1). Wood points out that the underlying tensions between the older Spanish and French Creoles and the British, both expatriate and Creole, “came to a head after 1840 when an aggressive English party sought to mould their fellow-citizens in their own image”, and, “as with Boer and Briton in South Africa, so also in Trinidad did the relations between two sets of Europeans sometimes take precedence in their own minds over their relations with those of other races” (1968:1). One of the media for this conflict was that of religion, especially when the distribution of state resources (i.e., funding for schools, property ownership) was at stake. In the late 1800s the majority of Arima’s inhabitants were Roman Catholics (Collens 1886:114). However, the Catholic Church faced growing competition from the Anglican Church, as well as finding itself in a conflict with the Governor’s office over its properties in Arima and over school funding. In 1891, out of a population of 8,500 in Arima, 4,500 were Catholic, and as many as 2,000 were Protestant with 2,000 ‘other’ (Cothonay 1893:448). For Trinidad as a whole, a religious census of 1891 (and the fact that this would be conducted is significant), showed a total population of 73,733 Roman Catholics, followed by 64,413 ‘Coolie’ and ‘Chinese’ (presumably meaning Hindu, Muslim, Confucian and Buddhist), and 46,920 Anglicans as well as 6,312 Wesleyans (Brereton 1979:12). As early as 1843 the Anglicans built their first church in Trinidad, in Tacarigua, adjacent to Arima (Rétout 1976:10). While the dividing lines were not neatly drawn, in broad terms Roman Catholics tended to be led by Spanish and French Creole families who, in many cases, dominated the cocoa economy; Anglicans, on the other hand, tended to be mostly British and have large investments in sugar production. Both competed for labor, for quotas of immigrants, and for state subventions.

Arima also experienced tension along the lines of religion and in terms of institutional authority and the proprietary rights of the Catholic Church that were entailed. In the process, the history of the Mission Indians took center stage. Let me first list some of the points of conflict here: (1) competition between Catholics and Protestants; (2) contestation of the Catholic Church’s claims to Mission lands; (3) directly stemming from the latter, conflict over the alienation of lands in Arima and the proposal to establish a public market in the park, Lord Harris Square, immediately opposite the Church of Santa Rosa; and, (4) the question of state funding for denominational schools.

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The question of the Catholic Church's hold over lands in Arima was a hotly contested issue that reached boiling point on several occasions over a period from the 1870s through the 1880s. The fact that the Church backed its claims to lands by rooting its proprietary history within the Mission, an Indian Mission, served to fuse the interests of the Church with those of the Indians it claimed to protect. Indeed, at one point the parish priest would argue that the Mission never ceased to be, and that he was still 'protector of the Indians', into the 1880s. Starting in 1871, Father Rouger spoke to the Archbishop about the "application which I am making to Government to obtain for the church in Arima the title to several lots of land which it occupies from time immemorial" (emphasis added).^[21] From that point, his successor in Arima, Father Louis Daudier, a Parisian and a prolific writer and campaigner, took over the contest. Père Daudier wrote emphatically in 1873:

The Catholic Church possesses land here since the last century. It is the Catholic Church itself which founded the locality, under the name of the Mission of Santa Rosa de Arima. The lands had been given to it by a Spaniard of the name of Cristova [sic] Robles, to establish a mission for Indians. The lands belonged to the Church, and around the Church the priests gathered the Indians; and the old certificates of baptisms have these words 'I, parish priest of Santa Rosa de Arima, and proprietor of this village'.^[22]

Daudier also explained that "since then, by a change in the administration [of the island], Government took possession of one part of these lands, and even those which remained in the possession of the Indians, and above all of a part of the square on which the church was situated". Daudier thus also entered a campaign to gain formal title to Lord Harris Square. In addition, Daudier wrote this: "May I add that the creation of the Mission of Arima is much older than the measure which the English Government took to relegate the Indians of the plains to the heights of Arima and to give them lands there" (emphasis added).^[23] With respect to the Indian lands on the 'heights of Arima' (the foothills leading north, also known by the Spanish as 'cabezeras' and today known as Calvary Hill, the residential home of many SRCC member families), Daudier is probably referring to the additional 320 acres of land granted to the Amerindians by Sir Ralph Woodford.

How would Father Daudier prove his case? The question of sources of information and verifiability was at issue. Daudier stressed that, "everybody is of the opinion, and knows by tradition, that these lands belong to the Church". However, he also admitted that "it would be difficult to arrange to have affidavits signed, not only because witnesses are either all dead or infirm, but also because their affidavits would affect some deep-rooted interests", and the latter is in itself a very curious statement since it might suggest the possibility that interests within Arima would also be compromised by Amerindian testimonies.^[24] How did Daudier know about the origins of the Mission given the lack of "evidence on parchment" as he put it? His answer was: "I was not able to invent it, knowing nothing of the country on my arrival in Arima. It is therefore by tradition that I found it out", and attested to "by the oldest Indians".^[25] Moreover, Daudier quoted an unnamed government employee who, he says, told him: "Basically it is certain that you have rights, but Government having begun to sell the Mission lands, cannot admit it for, once admitted, you will have the right to demand

restitution”.^[26] The government knew that what it did was wrong and illegal, and tried to stifle contestation on this issue precisely in order to avoid having to pay compensation. Daudier had won a partial victory by the late 1870s, with the colonial government granting the church formal title to over six acres of land.^[27] The battle over additional lands continued nonetheless; indeed, in response to further agitation by Father Daudier, the Government simply responded, in “reference to certain old Indian lands at Arima” that “His Excellency [the Governor] had decided that these lands were liable to public competition”.^[28]

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In response to a plan to outline the Church’s land claims in Arima, detailing sizes and historical interpretations, Fr. Daudier concludes firmly: “there is nothing of substance to this matter other than the fact that it was an Indian area and that there were two authorities both having rights in this area. Those of the Church have never been destroyed; that is precisely the question to be settled”.^[29] In a noteworthy letter of considerable length,^[30] Daudier expounds on these questions with great emphasis. He says of the Government’s counter-claims (i.e., that no formal titles were in evidence, and thus lands could be alienated and taxed), “I think that they exaggerate the rights of the State to the lands of the Mission”. Daudier harks back to Spanish laws in arguing that “the Spanish government generally exempted these lands from taxes, which was the case in Arima, and that made the land inalienable”. Daudier also argued that the Government “cannot deny at least that this land was Indian land or dedicated for use by the Indians”, and he repeated, “an Indian land, because all the documents subsequent to the Spaniards, in the archives of the government, show this evidence”.

Daudier also made his argument of continuity in Church proprietary rights by referring to living traditions, and he explains that, by and large, Arima was still a Mission in the late 1800s, and that he was, in effect, a missionary. He thus states:

On arriving in the parish of Arima, I found myself involved in a traditional network. The priest, from old times, has been regarded..by the Indians..as the Protector of the Indians and as the representative of the Mission; my predecessors have done like I have...the authority of the Missionary has suffered from time and circumstances, but it has never been destroyed by any official act—it could be denied but it could not be destroyed as long as there are Mission lands and Indians.^[31]

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Daudier explains, “by tradition and custom, each time that the Indians are in trouble it is to me that they come, to be their intermediary before the Government in their difficulties; and several Governors have accepted my petitions to make the pursuit against them as squatters cease”.^[32] In return, the Amerindians also performed labor service for the priest:

as a sign that they recognise the power of the church on them, there is the obligation that they have maintained towards

me of coming every Monday to work for the church. It is I who have begun to abolish this custom. However, if I call them for work, they come. Also, if they need a liana [vine] or some wood on the Mission lands, it is to me that they have always asked for permission...These facts also give witness to tradition.^[33]

Daudier's logic is that if he is recognized as the Amerindians' proprietary Father, and, the Government has previously recognized this at least tacitly, then the Mission is still in place and the laws governing the rights and legitimacy of the Church's hold on Mission lands, as decreed by the Spanish, were thus in effect, and therefore the problem is resolved. In making his case Daudier also relied on oral history, an acceptable form of evidence in the pursuit of Native Title cases as is happening at present in Australia.

Father Daudier was thus also active in campaigning on a second front, that of Indian rights over Mission lands. Daudier reveals that this position was not winning him any friends in government: "They accuse me, in the Government, of mixing myself up too much in this affair of the Mission and the Indians of Arima...I have always thought that I was fulfilling my duty".^[34] In this same letter, Daudier tells us that letters "sent by me to the Government, at the request of the Indians" were returned unanswered. Daudier had joined, or perhaps led, a campaign by Amerindian parishioners to obtain formal recognition over lands they claimed in Arima. Daudier's argument was that, "what remains for the Indians of this Mission land is so little, that I cannot understand the hesitation to recognise such a real right". Even though "a part of this land has been alienated through the passage of time and the vices of the Indians", Daudier asked "why take away the rest?" Daudier also speaks of the fact that on Calvary Hill, "several Indians asked me to let them build their houses there, and I allowed them; and nearly all saw their houses sold, after they had cleared the land which was in high woods, they were thus obliged to buy land that they could regard as their own", and he adds: "it is a new undertaking for the buying of lots on this land, possessed by the Indians which is the cause of all this correspondence". He explains: "the Government could give to the Indians according to whatever scheme they wished, be it collectively as inalienable land, or be it individually and dividing it as private land, whatever remains of the Mission lands", subsequent, of course, to the fulfilment of the Church's claims. As to the "cultivable lands petitioned for by the Indians", Daudier emphasized that there are "two motives that oblige the Government to concede: (1) their status as the old Indian owners of the area, and the interest which they must inspire in their claim; (2) a kind of justice to compensate them for the Mission lands which they have lost when these lands should have remained intact".^[35] The rights of those who were 'here before you' were paramount; the older the claims, the more legitimate; the logic here is that written evidence to substantiate claims is not necessary where tradition persists.

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These arguments were extended into the issue of the government's proposal to establish a market in Lord Harris Square. Daudier tells us: "several times I have had to fight for this savannah".^[36] Daudier again reminded the government that the Square "was created by the missionaries, then the real proprietors as in all the places which were under the missionaries, before the arrival of the English, and it was created with the object of protecting the Catholic worship from the noise and to surround it with the respect which it merits".^[37] The government, one can infer from the text of his

message, had reminded Daudier that it was the Ward, and not the church, which was responsible for the upkeep of the Square, thus eroding the credibility of the church's claim to the Square. Daudier replied that, although that was true since the English took the island, however, "on the eve of great Feasts, if the square was too dirty, the Indians cleaned it, and this happened two or three times since I became Parish Priest".^[38] Daudier also informed the government that the Square was church property as evidenced by the fact that the very first chapel of the Mission was built there: "The chapel on the square existed until the construction of the new church which was begun in 1789. I can still find, not witnesses of the existence of this chapel, but witnesses of the tradition received from their ancestors that the first church was there, on the Lord Harris Square itself".^[39] Daudier pleaded that the government show respect for the sanctity of Church services that would be interfered with by noise from the market, and he framed this in Catholic versus Protestant terms: "For though not believing in the presence of Jesus Christ in the Eucharist, you know that we Catholics believe in it".^[40]

The issue of government assistance for Catholic schools was another of these main sources of contention. Put briefly, the government had instituted a law that stipulated that government would fund religious schools only if a public school did not exist within a two-mile radius of a given religious school. As if to make a point, the government then established a public school right on the western side of Lord Harris Square, opposite the church, and immediately adjacent to the Catholic school. With the application of this law, Daudier complained to the government that Arima, with its population of "6,000 souls nearly all Catholic",^[41] would find it impossible "to bring up their children in their religion". The law should not be implemented, Daudier warned, "because it will seem to be the beginning of persecution". Daudier added: "We only want the good, we are not enemies. Why this hostility to Catholic schools?"^[42]

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In almost every respect, therefore, the British violated both the letter and the spirit of the Treaty of Amiens, subjecting all Catholics, Spanish and French Creoles, and Amerindians and their descendants to unfair and unjust acts of expropriation, discrimination and simple persecution.

SUMMARY: KEY TESTIMONIES [\[return to top\]](#)

In this section, I only wish to list and thus highlight critical evidentiary testimonies, most of which we have already encountered, as given by primary historical actors.

<i>Inalienable Lands in the Arima Mission</i>	"The village of Arima was, for a long time, an Indian mission. Soon after the settlement of the colony, these Indians had been formed into two missions at Tacarigua and Arima. But as the formation of ingenios, or sugar estates, was proceeding eastward, they were removed to the quarter of Arima, where a village was formed, and houses built by them, on about one
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	thousand acres which has been granted for the formation of a mission, along the right bank of the river, and as the full and unalienable property of the inhabitants” (De Verteuil 1858:299-300).
<i>The Extent of Land in Arima owned by Mission Indians</i>	[Question] 559. Do they [the Indians] not hold a tract of land set apart for their own use? [Answer by Sorzano:] Yes, a tract of about 1,000 acres, granted to them by the King of Spain, to which Sir Ralph Woodford added afterwards 320 acres, in consequence of their complaining of a want of provision grounds (Quoted in Burnley 1842:109).
<i>The Rights of Mission Indian land holders as realised by British Governors in line with the terms of the Treaty of Amiens</i>	“..the existing documents prove that the land of Arima was given to them (the Indians) as their property in community, with an exclusive and untransferable right to the employment thereof to the best advantage for their general benefit, and as I am not aware of their having by any act forfeited their right to claim rent for any land belonging to them in common, I am advised that it was competent to them to impose a ground rent on lots belonging to them in Arima...they could not indeed legally authorise the transfer of any portion of any portion of the Mission lands or of the property of that establishment...I have to observe that in 1797 only two white persons and nine colored men (married to Indian women) were then living in the village, and notwithstanding every search I remain quite ignorant of any regulation of Governor Chacon or of His Catholic Majesty that might have altered the Law regarding the settlement of strangers in an Indian Mission” (Governor Sir Ralph Woodford quoted in Fraser 1971 [1896]:101).

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<i>Illegal Loss of Lands</i>	“In 1834, when a stipendiary magistrate was appointed, the Indians were brought under the common law, and the corregidorship was abolished. In 1849, after the passing of the territorial ordinance, the lots in the village were put up for sale at an upset price – a measure the legality of which is highly questionable, as far as the Indians were concerned, since the lands and lost in the mission had been granted to them as a compensation for property of which they had been deprived” (De Verteuil 1858:300).
<i>‘Terra Nullius’, contra the 1802 Treaty of Amiens</i>	Dispatch from Mr. Huskisson, Secretary of State for the Colonies, to Sir Ralph Woodford – “Immemorial possession in the strict and absolute sense of the term seems indeed to be acknowledged as a valid title. But it might perhaps be difficult to rest any title upon that ground with reference to Lands situate in a Colony which within a period comparatively recent was an unoccupied wilderness, and one in which the rights of the Crown must in theory be conceived to have been absolute and universal before the settlement of the Colony commenced” (Quoted in Fraser 1971 [1896]:222-223).
<i>Asserting Catholic &</i>	With the change of administration, after the British takeover, the Indians no longer cleaned the square since the Ward was now in charge of its upkeep. However, “on the eve of great Feasts, if the square was too dirty, the Indians cleaned it, and this happened two or three times since I became Parish Priest”. From Father Louis Daudier, Father Louis, O.P., parish

<i>Amerindian Rights to Land in Arima</i>	priest of Arima, Letter to M. Mitchel, 16 April, 1873. Government formally granted titles to over six acres to the Santa Rosa R. C. Church, in 1874, registered by 1878. As per J. S. Burke, Administrator, Abstract of Grant of Lands in the Village of Arima, Grant dated 17 July, 1874, Registered 27 June 1878, No. 1023 (1878, Protocol of Deeds)
<i>Ignoring the Rights of the Amerindians</i>	In response to some agitation by Fr. Daudier, the Government responded, in “reference to certain old Indian lands at Arima” that “His Excellency [the Governor] had decided that these lands were liable to public competition”. From David Wilson, Sub-Intendant of the Commissioners Office, Letter to the Archbishop of Port of Spain, 05 March, 1881.

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<i>‘Terra Nullius’ Cannot Apply</i>	“May I add that the creation of the Mission of Arima is much older than the measure which the English Government took to relegate the Indians of the plains to the heights of Arima and to give them lands there [probably referring to the 320 acres granted by Sir Ralph Woodford]”. From Father Louis Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 10 March, 1873.
<i>On the Rights of Amerindians and their heirs to lands in Arima, and the continuity of Mission rights</i>	“..the Spanish government generally exempted these lands from taxes, which was the case in Arima, and that made the land unalienable...they cannot deny at least that this land was Indian land or dedicated for use by the Indians...an Indian land, because all the documents subsequent to the Spaniards, in the archives of the government, show this evidence...two motives...oblige the Government to concede: 1) their status as the old Indian owners of the area, and the interest which they must inspire in their claim; 2) a kind of justice to compensate them for the Mission lands which they have lost when these lands should have remained intact...the authority of the Missionary has suffered from time and circumstances, but it has never been destroyed by any official act—it could be denied but it could not be destroyed as long as there are Mission lands and Indians...Also, by tradition and custom, each time that the Indians are in trouble it is to me that they come, to be their intermediary before the Government in their difficulties; and several Governors have accepted my petitions to make the pursuit against them as squatters cease”. From Father Louis Daudier, O.P., parish priest of Arima, Letter to the Monsignor, 27 April, 1881
<i>Evading the duty to give Restitution</i>	An unnamed government employee told Father Louis Daudier: “Basically it is certain that you have rights, but Government having begun to sell the Mission lands, cannot admit it for, once admitted, you will have the right to demand restitution”. Father Louis Daudier, O.P., parish priest of Arima, Letter to the Monsignor, 27 April, 1881.

CONCLUSIONS: ADDRESSING OUR QUESTIONS [\[return to top\]](#)

Why did the Amerindians have land?

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Lands were given to the Amerindians on the Mission of Arima, in part as compensation for prior lands that were taken from them when they were moved out of the Missions of Caura, Arouca, and Tacarigua.

How much land did they have and where?

1,000 acres bordering on what is now Lord Harris Square. Another 320 acres on the southern slope of Calvary Hill, facing Lord Harris Square.

Under what conditions was the land held?

They held both lands in common, as well as private plots allocated to heads of households. The latter lands were to pass on to their heirs. These lands could not be sold or transferred, by anyone. The landholders were also exempt from taxation.

How did they lose the land?

The illegal penalty of land seizure for failing to show a deed to lands held, or pay taxes on said lands. Amerindians at the time were not literate and often were not even aware of the contents of Government Notices posted in public places in Arima. Lands in some cases were simply seized and put up for sale by the Government. Out of as many as 200 families, only nine (9) were left with their properties in Arima.

Where did they end up after losing the land?

Many moved to squat on lands on Calvary Hill, or in nearby districts where cocoa was grown, whether in the Northern Range, or in places such as Tumpuna (now San Rafael), Talparo, Aripo, Rio Claro, and places along the Central Range.

Why should they receive compensation?

They never should have lost these lands to start with. The British Government in Trinidad simply violated the terms of the Treaty of Amiens which it had signed with the Spanish Crown. On the grounds of basic justice, aboriginals and their descendants should have access to natural resources as was their birthright, in this the only nation which they have ever possessed.

In conclusion, Amerindian rights to land were never lawfully extinguished, and rarely were they yielded voluntarily. Even in cases where Amerindians sold their lands, those actions too were illegal. In addition, the Mission of Santa Rosa de Arima was never abrogated under any law. Colonial governments' recognition of the rights of the Church of Santa Rosa de Arima to select lands in Arima imply recognition of rights that preceded the British conquest, nullifying the 'terra nullius' position adopted by some Colonial officers. This inevitably entails at least tacit recognition that where the rights of the Church were being recognised and validated by the Government of the Crown Colony, so too must it recognise the rights of the Mission Amerindians, as the rights of the Church were staked out and rooted within the history of the Mission itself. Two parties constituted the Mission: the Church and the Amerindians. The recognition of the land rights of one necessitates the recognition of the land rights of the other. So far, only the Church has been successful in having its rights

recognised, unsurprisingly given its local power as a prominent social institution. The fact that the rights of the Church were formally recognised, as in the case of the park in Lord Harris Square, also meant that Colonial Government accepted the bases on which the claim was made, rooted in the oral history of elderly Amerindians of the Mission. This sets the precedent for accepting oral history by third party witnesses as a valid evidentiary basis for settling land disputes in Trinidad. As the post-1962 Government of the Republic of Trinidad and Tobago has inherited the institutional arrangements, treaty obligations, and in many cases the laws bequeathed by the British Crown, the historical irony may be that it has also inherited the duty to compensate victims of unjust and unlawful land seizures that have targeted and discriminated against an entire people. I am not aware of any reasons why the current Government of the United Kingdom should be exempted from making compensation, offering restitution, or paying reparations to the descendant families of Amerindians in Trinidad, who possessed lands under the Spanish Crown and then lost them completely under the British Crown. This reality is in stark contrast to what the British Crown itself set in place to protect the landholdings of aboriginal communities in Dominica in 1903 and in Guyana in 1910. The failure of post-colonial governments to negotiate these rights on attaining Independence does not necessarily mean, as far as I can ascertain, that the rights themselves are null and void. Compensation can be determined and measured in many different ways, though I suspect that most would expect that all 1,320 acres should be returned, if not more given natural population growth, as well as compensation for lost income for the period in which such lands were not held by their rightful heirs, free of taxation.

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NOTES:

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[1] A copy of the Treaty of Amiens can be found in the online Reference Library of Diplomatic Documents at <http://www.napoleonseries.org/reference/diplomatic/amiens.cfm>. Another copy can be found under the Research Subjects: Government & Politics section of Napoleon Series, at http://www.napoleon-series.org/research/government/diplomatic/c_amiens.html. These items were accessed at the time of writing and may or may not be currently available.

[2] A Mission in Arima had been founded during a first attempt around 1757, according to one author (Rétout 1976:45), but had apparently been dissolved shortly thereafter for reasons unexplained.

[3] This is according to a letter by Father Louis Daudier, Parish Priest of Arima, 27 April 1881. Here Father Daudier quoted “the oldest surviving Indians” of the area in establishing an oral history of the Indian Mission.

[4] Testimony by Martin Sorzano, Friday, 16 July 1841, at Port of Spain. Quoted in Burnley (1842:109).

[5] Incidentally, I am merely suggesting a possibility here, and not making a direct accusation.

[6] The role of Amerindians in constructing churches in mission towns has also been documented elsewhere in the region (Bisnauth 1996:23).

[7] La Divina Pastora is a devotion that originated in Spain, a devotion that the Capuchin order made its own and spread throughout its missions, especially from 1795 when Pope Pius VI named the Divina Pastora the special patroness of the Capuchin missions (Rétout 1976:55).

[8] To this day, the street running along the eastern side of Lord Harris Square (named after a subsequent governor who reportedly showed a paternal interest in the remaining Arima Amerindians), is named after Woodford, and runs past the door of the Church.

[9] I do not have the results of this survey or even any indication if it was actually conducted.

[10] It is unclear, to me, for how long Wright actually served as the corregidor given that, while still under the Woodford administration, one de Verteuil signs as the corregidor de Arima at the start of a new year of entries in the Baptismal Register for 1827 and 1828.

[11] Sorzano's testimony was given on Friday, 16 July 1841, at Port of Spain.

[12] Notes from displays at the National Museum of Trinidad and Tobago.

[13] An anonymous cocoa planter from Arima wrote on Harris' plans for territorial regulation and taxation: "Should this law of indirect confiscation be passed, these planters will see their lands taken from them every year—those lands which many families have held long before the Conquest [the British takeover of 1797], and which were respected even by Sir Ralph Woodford as being in the Libro Becero. Little did the poor cocoa and coffee planters, and the small proprietors of every description, expect that, under a show of even-handed justice, the enormous [tax] burden would be laid on those least able to bear it...The Sturdy Beggars of Arima will employ every legal means to avert the destructive blow". The Port of Spain Gazette, "Letter from 'A Cocoa Planter' in Arima". Friday, 19 March 1847.

[14] Letter of Father Louis Daudier, parish priest of Arima, to M. Michel, 16th April 1873.

[15] Daudier, Father Louis, O.P., parish priest of Arima, Letter, 04 October 1871.

[16] I use this term here to indicate that these families had a paternal if not proprietary relationship with the Mission Indians, as representatives of 'upstanding' Spanish Catholic families who owned lands in the area.

[17] See also Trinidad Standard & West Indian Journal, Friday, 13 July 1838: "As to any demand existing or likely to be created on the part of our Cocoa and Coffee planters, there is little to be feared on that score. The prices of these two

articles of Produce, give no encouragement to extend the cultivations”.

[18] Notes from displays at the National Museum of Trinidad and Tobago.

[19] See Trinidad Standard & West Indian Journal, Tuesday, 13 November, 1838.

[20] Letter of 04 February 1869.

[21] Rouger, Father M, parish priest of Arima, Letter to the Monsignor, 19 July 1871.

[22] From Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 10 March 1873. Indeed, I too have seen this designation in scattered remnants of the first Baptismal Register on file at the Archbishop’s Residence.

[23] Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 10 March 1873.

[24] Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 20 August 1873.

[25] Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 27 April 1881.

[26] Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 27 April 1881.

[27] Burke, J. S., Administrator, Abstract of Grant of Lands in the Village of Arima, Grant dated 17 July 1874, Registered 27 June 1878, No. 1023 (1878, Protocol of Deeds).

[28] Wilson, David, Sub-Intendant of the Commissioners Office, Letter to the Archbishop of Port of Spain, 05 March 1881.

[29] Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 22 March 1881.

[30] Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 27 April 1881.

[31] Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 27 April 1881.

[32] Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 27 April 1881.

[33] Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 27 April 1881.

[34] Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 27 April 1881.

[35] Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 27 April 1881.

[36] Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 27 April 1881.

[37] Daudier, Father Louis, O.P., parish priest of Arima, Letter to M. Mitchel, 16 April 1873.

[38] Daudier, Father Louis, O.P., parish priest of Arima, Letter to M. Mitchel, 16 April 1873.

[39] Daudier, Father Louis, O.P., parish priest of Arima, Letter to the Monsignor, 02 June 1881.

[40] Daudier, Father Louis, O.P., parish priest of Arima, Letter to M. Mitchel, 16 April 1873.

[41] Daudier also argued his position on the basis of numbers, stating: “I feel satisfied from the number of christenings I have registered here that there are at least 7 or 800 children of an age to attend school”. From: Daudier, Father Louis, O.P., parish priest of Arima, Letter, 31 March 1886.

[42] Daudier, Father Louis, O.P., parish priest of Arima, Letter to M. L. Guppy, 24 March 1886.

REFERENCES:

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Anthony, Michael. 1988. Towns and Villages of Trinidad and Tobago. St. James, Port of Spain, Trinidad and Tobago: Circle Press.

Baptismal Register of the Church of Santa Rosa de Arima, select entries for 1809.

Baptismal Register of the Mission of Santa Rosa, Arima. 1792-1794. Scattered Remnants of Entries.

———. 1820-1835. Book No. 1.

———. 1835-1840. Book No. 2.

Baptismal Register of the Church of Santa Rosa, Arima, 1840-1852. Book No. 3.

———. 1866-1876. Book No. 4.

———. 1877-1887, Book No. 5.

———. 1887-1892, Book No. 6.

———. 1892-1899, Book No. 7.

———. 1900-1906. Book No. 8.

- . 1906-1910. Book No. 9.
———. 1910-1916. Book No. 10.

Besson, Gerard and Bridget Brereton, eds. 1991. *The Book of Trinidad*. Port of Spain, Trinidad: Paria Publishing Co., Ltd.

Boomert, Arie. 1982. "Our Amerindian Heritage". *Trinidad Naturalist*. 4 (4) Jul-Aug:26-38, 60.

Borde, Pierre-Gustave-Louis. 1876. *The History of the Island of Trinidad under the Spanish Government, Second Part (1498-1622)*. Paris: Maisonneuve et Cie, Libraires-Editeurs.

Brereton, Bridget. 1991. "Cocoa, the Golden Bean: Cocoa and the Second Frontier (1870-1920)". In *The Book of Trinidad*. Gerard Besson and Bridget Brereton, eds. Pp. 317-322. Port of Spain, Trinidad: Paria Publishing Co., Ltd.

Brereton, Bridget. 1979. *Race Relations in Colonial Trinidad, 1870-1900*. Cambridge: Cambridge University Press.

Burke, J. S., Administrator. Abstract of Grant of Lands in the Village of Arima, Grant dated 17 July 1874, Registered 27 June 1878, No. 1023 (1878, Protocol of Deeds).

Burnley, William Hardin. 1842. *Observations on the Present Condition of the Island of Trinidad, and the Actual State of the Experiment of Negro Emancipation*. London: Longman, Brown, Green, and Longmans.

Collens, James Henry. 1886. *Guide to Trinidad: A Handbook for the Use of Tourists and Visitors*. Port of Spain, Trinidad.

Cothonay, R. P. Marie-Bertrand O.P. 1893. *Trinidad: Journal d'un Missionnaire Dominicain des Antilles Anglaises*. Preface by R.P. Ch.-Anatole Joyau, O.P., Editor. Paris: Victor Retaux et Fils, Libraires-Éditeurs.

Daudier, Father Louis, O.P. (Parish Priest of Arima). Letter. 04 February 1869.

- . Letter to the Monsignor. 04 October 1871.
———. Letter to the Monsignor. 12 February 1872.
———. Letter to the Monsignor. 19 February 1872.
———. Letter to the Monsignor. 10 March 1873.
———. Letter to M. Mitchel. 16 April 1873.
———. Letter to the Monsignor. 16 April 1873.
———. Letter to the Monsignor. 20 August 1873.
———. Letter to the Monsignor. 20 August 1873.
———. Letter to the Monsignor. 18 February 1876.
———. Letter to the Monsignor. 22 March 1881.
———. Letter to the Monsignor. 27 April 1881.

- . Letter to the Monsignor. 02 June 1881.
- . Letter to M. L. Guppy. 24 March 1886.
- . Letter. 31 March 1886.
- . Letter. N.d.

De Verteuil, L. A. A. 1858. *Trinidad: Its Geography, Natural Resources, Administration, Present Condition, and Prospects*. London: Ward & Lock.

De Verteuil, Anthony, C. S. Sp. 1995. *Martyrs and Murderers: Trinidad, 1699*. Port of Spain, Trinidad: St. Mary's College.

Espinosa, Antonio Vázquez de. 1968. *Description of the Indies (c. 1620)*. Trans. Charles Upson Clark, *Smithsonian Miscellaneous Collections Vol. 102*. Washington DC: Smithsonian Institution Press.

Esteva, Father François (Parish Priest of Arima). Letter. 18 August 1868.

- . Letter. 12 March 1869.
- . Letter. 17 March 1869.
- . Letter. 28 March 1869.

Figueredo, Alfredo E. and Glazier, Stephen D. 1991. "A Revised Aboriginal Ethnohistory of Trinidad (1978)". In *Earliest Hispanic/ Native American Interactions in the Caribbean*. William F. Keegan, ed. Pp. 237-240. New York: Garland Publishing, Inc.

Fraser, Lionel Mordant. 1971 [1896]. *History of Trinidad (Second Period), from 1814 to 1839, Vol. II*. London: Frank Cass & Co., Ltd.

Garcia, Beulah P. 1991. *The Borough of Arima: the war years and beyond, 1938-1988*. Master's thesis, University of the West Indies, St. Augustine, Trinidad.

Goldwasser, Michele. 1996. *The Rainbow Madonna of Trinidad: A Study in the Dynamics of Belief in Trinidadian Religious Life*. (Ph.D. diss. University of California at Los Angeles.) Ann Arbor, Michigan: University Microfilms International.

Gregoire, Crispin and Natalia Kanem. 1989. "The Caribs of Dominica: Land Rights and Ethnic Consciousness". *Cultural Survival Quarterly* 13(3):52-55.

Harricharan, Fr. John Thomas. 1983. *The Catholic Church in Trinidad, 1498-1852. Vol. 1*. Port of Spain: Inprint Caribbean Ltd.

Joseph, E. L. 1970 [1838]. *History of Trinidad*. London: Frank Cass & Co., Ltd.

Leahy, Vincent. 1980. *Catholic Church in Trinidad, 1797-1820*. Arima, Trinidad: St. Dominic Press.

Massé, Armand. 1988. *The Diaries of Abbé Armand Massé, 1878- 1883*. Vol. 2. Translated in Four Volumes from the original French by M. L. de Verteuil. Port-of-Spain, Trinidad.

Moodie-Kublalsingh, Sylvia. 1994. *The Cocoa Panyols of Trinidad: An Oral Record*. London: British Academic Press.

Newson, Linda. 1976. *Aboriginal and Spanish Colonial Trinidad: A Study in Culture Contact*. London: British Academic Press.

Noel, Jesse A. 1972. *Trinidad, Provincia de Venezuela: Historia de la administración española de Trinidad*. Caracas: Biblioteca de la Academia Nacional de la Historia.

Rétout, Sr. Marie Thérèse, O.P. 1976. *Parish Beat. Port of Spain, Trinidad*: Inprint Caribbean Ltd.

Rouger, Father M. (Parish Priest of Arima). Letter to the Monsignor, 02 May 1871.

———. Letter to the Monsignor, 19 July 1871.

Stephens, Cherryl. 1985. *Labour supply and labour organization in the cocoa industry of Trinidad, 1870-1920*. Master's thesis, University of the West Indies, St. Augustine, Trinidad.

Strong, Pauline Turner and Barrik Van Winkle. 1993. "American Indians and American Nationalism". *Social Analysis*. (33) Sep:9-26.

Treaty of Amiens, 1802. Reference Library of Diplomatic Documents, Available at:
<http://www.napoleonseries.org/reference/diplomatic/amiens.cfm>

Valerio, Pedro. 1991. "Sieges and Fortunes of a Trinidadian in Search of a Doctor's Diploma: My Birth and Early Childhood". In *The Book of Trinidad*. Gerard Besson and Bridget Brereton, eds. Pp. 322-327. Port of Spain, Trinidad: Paria Publishing Co., Ltd.

Whitehead, Neil L. 1988. *Lords of the Tiger Spirit: A History of the Caribs in Colonial Venezuela and Guyana, 1498-1820*. Koninklijk Instituut, Caribbean Series 10. Dordrecht, Holland: Foris Publications.

Wilson, David (Sub-Intendant of the Commissioners Office). Letter to the Archbishop of Port of Spain, 05 March 1881.

Wise, K. S. 1938. Historical Sketches of Trinidad and Tobago, Vol. IV. Port of Spain, Trinidad: Historical Society of Trinidad and Tobago.

Wood, Donald. 1968. Trinidad in Transition: The Years After Slavery. London: Oxford University Press.

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